

SOFTWARE LICENSE AGREEMENT

Between "GlobalSoft Corp." (Licensor) and "Enterprise Solutions Inc." (Licensee)

Effective Date: June 15, 2025 | Agreement No. SLA-2025-0088

PREAMBLE

This Software License Agreement is entered into as of June 15, 2025, by and between GlobalSoft Corp., a Delaware corporation at 400 Innovation Drive, San Jose, CA 95110, and Enterprise Solutions Inc., a New York corporation at 1290 Avenue of the Americas, New York, NY 10104.

Licensor has developed the GlobalSoft Analytics Platform, a comprehensive enterprise analytics and business intelligence solution. Licensee desires to license the Software for use in its business operations on the terms and conditions set forth herein.

ARTICLE 1 — DEFINITIONS

1.1 "Software"

means the GlobalSoft Analytics Platform, version 4.x, including all modules, components, APIs, and add-ons licensed hereunder, together with all Updates, patches, and new versions provided to Licensee pursuant to this Agreement.

1.2 "Documentation"

means Licensor's user manuals, technical specifications, API references, release notes, and other written or electronic materials describing the Software.

1.3 "Named Users"

means individual employees or authorized contractors of Licensee who have been assigned a unique user account and login credentials to access the Software. Named User licenses may be reassigned only after the prior user's account has been deactivated for at least 30 days.

1.4 "Updates"

means bug fixes, patches, minor feature enhancements, and security releases for the Software that Licensor makes generally available to its licensees, but excluding Major Upgrades.

1.5 "Major Upgrades"

means new major versions of the Software designated by a change in the first digit of the version number (e.g., version 4.x to 5.x), including substantial new functionality or architecture changes.

ARTICLE 2 — LICENSE GRANT

2.1 License Grant. Subject to the terms of this Agreement, Licensor hereby grants Licensee a non-exclusive, non-transferable, non-sublicensable, limited license to: (a) install and use the Software in Licensee's Authorized Environment; (b) allow Named Users to access the Software solely for Licensee's internal business purposes; and (c) make one archival copy for backup purposes only.

2.2 Named User Limit. The license covers up to five hundred (500) Named Users. Licensee shall not permit access to exceed the licensed quantity at any time. Additional Named User packs (100 users) are available at \$28,000 per pack per year subject to a separate Order Form.

2.3 Restrictions. Licensee shall not: (a) sublicense, sell, rent, or transfer the Software to any third party; (b) reverse engineer, decompile, or disassemble the Software; (c) remove or alter any proprietary notices; (d) use the Software to develop a competing product; (e) violate applicable law; or (f) conduct security testing without prior written consent.

2.4 Audit Rights. Licensor may audit Licensee's use of the Software no more than once per year upon 10 business days' advance written notice. If an audit reveals underpayment exceeding 5%, Licensee shall pay the deficiency plus interest at 1.5% per month, and Licensor's audit costs.

ARTICLE 3 — LICENSE FEES

3.1 Annual License Fee. Licensee shall pay Licensor an annual license fee of One Hundred Eighty Thousand US Dollars (\$180,000) per year. The Annual Fee is due in advance upon execution and upon each anniversary date. All fees are non-refundable except as expressly provided herein.

Component	Annual Fee	Notes
Base License (500 Named Users)	\$180,000	Due annually in advance
Additional User Pack (per 100 users)	\$28,000	Per order form
Premium Support Tier	\$36,000	Optional, see Article 5
Training Package (on-site)	\$12,000	Optional, per engagement
Major Upgrade (v5.x when released)	TBD	Separate negotiation required

3.2 Fee Escalation. Licensor may increase the Annual Fee by up to 5% per year upon 90 days prior written notice. Licensee's failure to object within 30 days of receiving notice shall constitute acceptance.

ARTICLE 4 — INTELLECTUAL PROPERTY

4.1 Licensor Ownership. All title, ownership, and intellectual property rights in and to the Software, Documentation, and all improvements and derivative works remain exclusively with Licensor. This Agreement grants Licensee only the limited license rights expressly set forth herein.

4.2 Licensee Data. Licensee retains all rights, title, and interest in and to all data inputted into or processed through the Software. Licensor shall not access or use Licensee Data except as necessary to provide the licensed services.

4.3 Feedback. Any feedback or suggestions provided by Licensee relating to the Software shall be deemed the exclusive property of Licensor, and Licensee hereby assigns all rights therein to Licensor.

without compensation.

ARTICLE 5 — SUPPORT AND MAINTENANCE

5.1 Standard Support. The Annual Fee includes Standard Support comprising: (a) access to Licensor's online support portal; (b) email support with 2-business-day response; (c) all Updates via auto-update; and (d) access to the online knowledge base. Support is available 9am-6pm Eastern Time, Monday through Friday.

5.2 Critical Security Patches. Licensor shall deliver critical security patches within 72 hours of their general release, regardless of support tier. Licensor shall notify Licensee via email on the same day patches are released.

5.3 Major Upgrades. Major Upgrades are included in the Annual Fee for the first 24 months. After 24 months, Major Upgrades are subject to separately negotiated upgrade fees. Licensor shall provide at least 6 months advance notice before discontinuing support for any version.

5.4 End of Life. Licensor shall support each Software version for a minimum of 3 years from its initial release date and is not obligated to support versions more than 2 major releases behind the current version.

ARTICLE 6 — DATA PROTECTION

6.1 Data Processing. Licensor shall process Licensee Data only as necessary to provide the licensed services, in accordance with Licensee's instructions and in compliance with applicable data protection laws including the GDPR and CCPA.

6.2 Security. Licensor shall maintain a written information security program with reasonable technical, administrative, and physical safeguards to protect Licensee Data. Licensor shall obtain and maintain SOC 2 Type II certification or equivalent.

6.3 Breach Notification. In the event of a security incident affecting Licensee Data, Licensor shall notify Licensee within 48 hours of discovery, including: (a) nature of the incident; (b) categories and approximate number of records affected; (c) likely consequences; and (d) remediation measures.

ARTICLE 7 — WARRANTIES AND DISCLAIMERS

7.1 Software Warranty. Licensor warrants for 90 days from delivery that: (a) the Software performs materially in accordance with the Documentation; (b) to Licensor's knowledge, it contains no malicious code; and (c) Licensor has the right to grant the licenses herein.

7.2 DISCLAIMER. EXCEPT AS IN SECTION 7.1, THE SOFTWARE IS PROVIDED 'AS IS.' LICENSOR DISCLAIMS ALL OTHER WARRANTIES, EXPRESS, IMPLIED, OR STATUTORY, INCLUDING MERCHANTABILITY, FITNESS FOR A PARTICULAR PURPOSE, AND NON-INFRINGEMENT.

ARTICLE 8 — LIMITATION OF LIABILITY

8.1 Exclusion of Consequential Damages. IN NO EVENT SHALL EITHER PARTY BE LIABLE FOR ANY INDIRECT, INCIDENTAL, SPECIAL, EXEMPLARY, PUNITIVE, OR CONSEQUENTIAL DAMAGES, INCLUDING LOSS OF PROFITS, REVENUE, DATA, OR GOODWILL.

8.2 Cap on Liability. LICENSOR'S TOTAL AGGREGATE LIABILITY SHALL NOT EXCEED THE ANNUAL FEE PAID IN THE TWELVE (12) MONTHS PRECEDING THE EVENT GIVING RISE TO THE CLAIM.

ARTICLE 9 — TERM AND TERMINATION

9.1 Term. This Agreement commences on the Effective Date and continues for an initial period of three (3) years. After the Initial Term, this Agreement automatically renews for successive one-year periods unless either party provides written notice of non-renewal at least 90 days before the end of the then-current term.

9.2 Termination for Cause. Either party may terminate upon 30 days written notice if the other materially breaches and fails to cure. Licensor may terminate immediately if Licensee infringes intellectual property, violates license restrictions, or becomes insolvent.

9.3 Effect of Termination. Upon termination: (a) all licenses immediately terminate; (b) Licensee ceases all use of the Software; (c) Licensee exports all Licensee Data within 30 days; and (d) each party returns the other's Confidential Information.

EXHIBIT A — LICENSED SOFTWARE MODULES

Module	Description	Included
Core Analytics Engine	Real-time data processing and aggregation	✓
Dashboard Builder	Drag-and-drop visual analytics interface	✓
Data Connectors (50+)	Pre-built connectors for major data sources	✓
API Gateway	RESTful and GraphQL APIs for external integrations	✓
Collaboration Tools	Shared dashboards, annotations, and alerts	✓
ML Predictions Module	Built-in forecasting and anomaly detection	✓
Advanced Security (SSO)	SAML 2.0, LDAP, and MFA integrations	✓
White-Label Export	Branded PDF/Excel report generation	✓

SIGNATURE PAGE

GLOBALSOFT CORP. (Licensor)

Signature: _____

Name: _____

Title: _____

Date: _____

ENTERPRISE SOLUTIONS INC. (Licensee)

Signature: _____

Name: _____

Title: _____

Date: _____